

**BEFORE THE BOARD OF COUNTY COMMISSIONERS OF BERNALILLO
COUNTY, NEW MEXICO**

IN THE MATTER OF THE APPEAL OF PAT HAUSER,

Appellant,

v.

BERNALILLO COUNTY,

Appellee.

CHECKED OUT

JUL 22 2026

BERNALILLO COUNTY BUILDING DEPT

Case No. ZCOA2026-0013 (Appeal to the Commission)

Underlying Case Nos. ZBA2026-0001 / BA2026-0001 / ZA2026-0024

Subject Property: 9600 2nd Street NW, Albuquerque, NM 87114

APPELLANT'S AMENDMENT AND ERRATA TO APPEAL BRIEF

COMES NOW Appellant Pat Hauser and submits this Amendment and Errata to the Appeal Brief filed July 20, 2026 (the "Brief"). This errata corrects citation errors that appear in the Brief itself — in the exhibit list appended to the Brief and in the body of the Brief. These corrections conform the Brief's exhibit-list descriptions and record citations to the exhibits actually filed and to the record; they do not alter the arguments advanced, the grounds for appeal, or the relief requested. Except as expressly corrected below, the Brief is reaffirmed in its entirety.

I. CORRECTIONS TO THE EXHIBIT LIST APPENDED TO THE BRIEF

The exhibit list appended to the Brief (Exhibit | Description | Source Document | Page/Location) is corrected as follows so that each entry conforms to the exhibit actually filed:

1. Exhibit 19 — conformed to the Murphy Express Traffic Study.

The exhibit-list entry is corrected to conform to the exhibit actually filed and to read:

"Murphy Express (Alameda Blvd. / 2nd St.) Traffic Study, prepared and stamped by Terry O. Brown, P.E. (NM Lic. #6407), April 10, 2020 (Packet Pg. 1407–1426) —

the only traffic study in the record; documents Level of Service F and right-in / right-out driveway restrictions for a 12-pump gas station on this corridor.” Source Document: Exhibit-19-Murphy-Express-Traffic-Report.pdf. Page/Location: Packet Pg. 1407–1426. The Brief’s substantive discussion of this study throughout the Brief is accurate and is unchanged.

2. Exhibit 11 — the filed exhibit is not a certified transcript.

Original text (Brief exhibit list, Exhibit 11): “Certified hearing transcript and analysis of the July 1, 2026, Planning Commission hearing (testimony of Luna, Hamm, Commissioners, and Applicant).” Source Document listed: “BA_2026-001_Transcription_Analysis.docx.”

Correction: Exhibit 11 is titled “Hearing Transcription & Analysis” and states on its face (page 1) that it is “NOT AN OFFICIAL TRANSCRIPT — Prepared for advocacy and citation purposes.” It is a Coalition-prepared transcription offered to organize the testimony of record for the Board’s convenience; it is not, and does not purport to be, a certified or official transcript. The entry is corrected to read: “Coalition-prepared hearing transcription & analysis of the July 1, 2026 Planning Commission hearing (testimony of Luna, Hamm, Commissioners, and Applicant) — not an official or certified transcript.” The Source Document case number is also corrected to “BA2026-0001.” It is a transcript of the July 1, 2026, recording prepared by the Appeal Coalition. To obtain an official transcript please contact the County records custodian.

3. Exhibit 26 — the 20% protest threshold is measured within 100 feet, not 500 feet.

Original text (Brief exhibit list, Exhibit 26): “20% Protest Petition (Rule 7 / Section 25) — neighboring owners within 500 ft.”

Correction: The 20% protest threshold under NMSA § 3-21-6(C) is measured within 100 feet of the subject property; the 500-foot radius is the notice area. (The Brief’s body correctly states this standard in its prayer for relief — “owners of at least 20 percent of the land within 100 feet of the subject property.”) The entry is corrected to

read: “20% Protest Petition (Rule 7 / Section 25) — neighboring owners within 100 ft (the qualifying buffer for the 20% protest) and within 500 ft (the notice area).”

4. Exhibit 25 exhibit-list entry — Packet page for the Rural Area finding.

Original text (Brief exhibit list, Exhibit 25, Page/Location): “Rural Area policy; Pkt Pg. 923.”

Correction: Finding 11 of the staff report (Exhibit 4) — “the site is within the Rural Area of the Comprehensive Plan” — appears on Packet Pg. 922. The citation is corrected to “Packet Pg. 922.”

II. CORRECTIONS TO THE BODY OF THE BRIEF

5. Case numbers in the caption — “BA2026-001” should be “BA2026-0001,” and the caption should reference the County Commission appeal record ZCOA2026-0013.

Original text (Brief caption): “APPEAL BRIEF – No. ZBA2026-0001 / BA2026-001 / ZA2026-0024.” The body also refers to “BA 2026-001 hearing testimony” in the prayer for relief.

Correction: The correct underlying case number is “BA2026-0001,” as used elsewhere in the Brief and in the staff report and Notice of Decision. In addition, the County’s official record number for this appeal to the Commission is “ZCOA2026-0013” (Record Type: Appeal to the Commission), per the July 20, 2026 filing receipt (Record ID ZCOA2026-0013, Receipt #1378826). The caption is corrected to read: “APPEAL BRIEF – No. ZCOA2026-0013 (Appeal to the Commission) / ZBA2026-0001 / BA2026-0001 / ZA2026-0024.” The body references to “BA 2026-001” are corrected to “BA2026-0001.”

6. Subject-property acreage — “3.87 acres” should be “approximately 3.90 acres.”

Original text (Brief, Statement of Facts): “... comprising 3.87 acres zoned A-1.”

Correction: The staff report (Exhibit 4) states the property is “approximately 3.90 acres” (Findings 1 and 2; Size analysis), and the County’s July 20, 2026 filing receipt for this appeal (Record ID ZCOA2026-0013) lists the legal description as

“MAP 24 TR 208B CONT 3.900 AC.” The acreage is corrected to “approximately 3.90 acres.” The actual is 3.87 acres.

7. Section IV.M — stormwater-runoff figure.

Original text (Brief § IV.M): “... a 1-inch rain event on the building footprint and paved parking area could generate over 100,000 gallons of runoff, with no pooling pond, detention plan, or storm water pollution prevention plan anywhere in the record.”

Correction: Based on the building footprint (43,288 SF) and the paved parking area, a 1-inch rain event generates approximately 70,000 to 85,000 gallons of runoff. The figure is corrected to “tens of thousands of gallons (approximately 70,000–85,000 gallons).” No grading and drainage plan, hydrology report, detention plan, or stormwater pollution prevention plan appears anywhere in the record; the substantive point — that stormwater impacts were entirely unanalyzed — is unchanged.

8. Packet page for the Rural Area finding (Finding 11) in the body — “Packet Pg. 923” should be “Packet Pg. 922.”

Original text (Brief, North Valley Area Plan discussion): “... the Rank I ABC Comprehensive Plan designates this site Rural Area (Finding 11, Packet Pg. 923)...”; and (prayer for relief § 17.e): “... Rank I ABC Comprehensive Plan's Rural Area (Packet Pg. 923)...”

Correction: Finding 11 (Rural Area) of the staff report (Exhibit 4) appears on Packet Pg. 922. Both citations are corrected to “Packet Pg. 922.”

III. NO CHANGE TO RELIEF REQUESTED

Except as expressly corrected above, Appellant respectfully reaffirms the Appeal Brief filed July 20, 2026, in its entirety, including all grounds for appeal and the relief requested in the Brief's prayer for relief.

Respectfully submitted,

A handwritten signature in blue ink, appearing to read "Pat Hauser", with a long horizontal flourish extending to the right. The signature is positioned above a thin horizontal line.

Pat Hauser, Appellant

Appellant / Maria-Diers Neighborhood Association

On behalf of the Appeal Coalition

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Date: July 22, 2026